LAST WILL AND TESTAMENT

OF

GRACE J. PARSONS

I, **GRACE J. PARSONS**, a resident of the City of Austin, Travis County, Texas, being of sound mind and over the age of eighteen (18) years, and not acting under duress, menace, fraud, or the undue influence of any person, do hereby make, publish, and declare this instrument to be my Last Will and Testament (my "Will"). I hereby revoke all wills and codicils previously made by me.

ARTICLE I
FAMILY INFORMATION

1.1 Spouse. I am married to **THOMAS A. PARSONS**. All references in this Will to "my spouse" or "my husband" are to Thomas A. Parsons.

1.2 Children. I have two (2) children now living, namely **TIMOTHY S. PARSONS** and **JOSHUA J. PARSONS**. I have no deceased children. All references in this Will to "my children" are to the children named in this Section 1.2 and to any child hereafter born to or adopted by me, and all references to "my descendants" include my children and their descendants of every degree.

ARTICLE II
PAYMENT OF DEBTS, EXPENSES, AND TAXES

2.1 Debts and Expenses. I direct my Executor to pay from my residuary estate my legally enforceable debts that are due and payable at my death, the expenses of my last illness and funeral, and the expenses of administering my estate. My Executor shall not be required to pay, prior to maturity, any debt secured by a mortgage, lien, or pledge of real or personal property owned by me, and any such property shall pass subject to such indebtedness unless my Executor, in my Executor's sole discretion, determines otherwise.

2.2 Death Taxes. All estate, inheritance, and similar taxes (including any interest and penalties) payable by reason of my death with respect to property passing under this Will shall be paid out of my residuary estate as an expense of administration, without apportionment and without reimbursement from any person, except that no such taxes shall be charged against any property that qualifies for the federal estate tax marital deduction, to the extent other assets are available. Taxes attributable to property passing outside this Will shall be apportioned in the manner provided by Chapter 124 of the Texas Estates Code and applicable federal law.

ARTICLE III
COMMUNITY AND SEPARATE PROPERTY

3.1 Property Disposed Of. It is my intention by this Will to dispose of all of my separate property and my one-half (1/2) interest in the community property of my spouse and me. I do not intend to dispose of, and this Will shall not be construed as an attempt to dispose of, my spouse's one-half (1/2) interest in our community property or any separate property of my spouse, and no election shall be required of my spouse or of any other beneficiary under this Will.

3.2 Non-Probate Assets. I recognize that certain assets, such as life insurance, retirement accounts, accounts with payable-on-death or transfer-on-death designations, and property held with rights of survivorship, may pass by beneficiary designation or operation of law rather than under this Will. Nothing in this Will is intended to revoke or alter any such designation or arrangement.

ARTICLE IV
TANGIBLE PERSONAL PROPERTY

4.1 Gift to Spouse. I give all of my tangible personal property, including without limitation my jewelry, clothing, household furniture and furnishings, books, art, personal automobiles, and other tangible articles of personal or household use, together with any insurance on such property, to my spouse, if my spouse survives me.

4.2 Executor's Sole Discretion if Spouse Does Not Survive. If my spouse does not survive me, I give my tangible personal property to such of my children as survive me, to be divided among them in such manner and in such shares as my Executor, in my Executor's sole and absolute discretion, determines to be appropriate, it being my general desire (but not my direction) that such property be divided in shares of substantially equal value. My Executor may consider any written memorandum or statement of my wishes that I may leave, but such memorandum shall be precatory only and shall not be binding upon my Executor. Each determination by my Executor regarding the selection, valuation, division, and distribution of my tangible personal property shall be final, conclusive, and binding upon all persons interested in my estate. If neither my spouse nor any child of mine survives me, my tangible personal property shall be added to and disposed of as part of my residuary estate.

4.3 Sale; Delivery; Minor Beneficiaries. My Executor may, in my Executor's sole discretion, sell any item of tangible personal property that my Executor deems impractical to distribute and add the net proceeds to my residuary estate. Any item distributable to a beneficiary who is a minor may, in my Executor's discretion, be delivered to the guardian of the person of such beneficiary, to the person with whom such beneficiary resides, or to the Trustee of any trust held for such beneficiary under Article VII, and the receipt of such person shall fully discharge my Executor. The reasonable costs of storing, insuring, packing, and shipping such property shall be paid as an expense of administration.

ARTICLE V
RESIDUARY ESTATE

5.1 Definition. All the rest, residue, and remainder of my property and estate, real, personal, and mixed, of whatever kind and wherever situated, including all property that I may acquire or become entitled to after the execution of this Will, all lapsed or failed gifts, and all property over which I may have a power of appointment that I have not otherwise effectively exercised (provided that I do not hereby exercise any power of appointment), is referred to in this Will as my "residuary estate."

5.2 Primary Beneficiary. I give, devise, and bequeath my entire residuary estate to my spouse, **THOMAS A. PARSONS**, if my spouse survives me.

5.3 Contingent Beneficiaries – My Descendants. If my spouse does not survive me, I give, devise, and bequeath my residuary estate to my children, **TIMOTHY S. PARSONS** and **JOSHUA J. PARSONS**, in equal shares, one (1) share for each child of mine who survives me and one (1) share for each child of mine who does not survive me but leaves one or more descendants who survive me. The share for a deceased child shall be distributed to such child's surviving descendants, *per stirpes*. Any share or portion of a share distributable under this Section 5.3 to a beneficiary who has not attained the age of twenty-five (25) years shall be held in trust as provided in Article VII.

5.4 Ultimate Contingent Beneficiaries. If neither my spouse nor any descendant of mine survives me, I give, devise, and bequeath my entire residuary estate in equal shares to **SARAH R. ROBERTS** and **HOWARD C. LONG**. If either of them fails to survive me, the share of the deceased beneficiary shall pass to the survivor of them. If neither of them survives me, my residuary estate shall be distributed to those persons who would have been entitled to inherit it, and in the shares provided, under the laws of descent and distribution of the State of Texas then in effect, as though I had died intestate, unmarried, and domiciled in Texas on the date of my death.

ARTICLE VI
SURVIVORSHIP

6.1 Required Survival Period. Any beneficiary under this Will, including my spouse, who does not survive me by thirty (30) days shall be deemed to have predeceased me for all purposes of this Will. This Section is intended to establish a survival period longer than the one hundred twenty (120) hour period otherwise required by Chapter 121 of the Texas Estates Code, as permitted by that Chapter.

6.2 Simultaneous Death. If my spouse or any other beneficiary and I die under circumstances in which there is no sufficient evidence of the order of our deaths, such beneficiary shall be deemed to have predeceased me, and this Will shall be construed accordingly.

ARTICLE VII
TESTAMENTARY TRUSTS FOR BENEFICIARIES UNDER AGE TWENTY-FIVE

7.1 Creation of Trusts. If any property (other than tangible personal property distributed under Section 4.3) becomes distributable under this Will to a beneficiary who has not attained the age of twenty-five (25) years (a "Young Beneficiary"), such property shall not be distributed outright but shall instead be distributed to the Trustee named in Section 7.2, to be held, administered, and distributed as a separate trust for the benefit of that Young Beneficiary, upon the terms set forth in this Article VII. Each such trust shall be known by the name of its beneficiary (for example, the "Timothy S. Parsons Trust").

7.2 Trustee. I appoint **SARAH R. ROBERTS** as Trustee of each trust created under this Will. If Sarah R. Roberts fails to qualify, or having qualified dies, resigns, becomes incapacitated, or otherwise ceases to serve, I appoint **HOWARD C. LONG** as successor Trustee. If both fail or cease to serve, the last serving Trustee may appoint a successor Trustee by a signed and acknowledged written instrument; failing such appointment, a successor Trustee (which may be an individual or a corporate fiduciary) shall be appointed by a court of competent jurisdiction. Any Trustee may resign by giving thirty (30) days' written notice to the beneficiary (or the beneficiary's guardian) and to the successor Trustee.

7.3 Distributions During the Trust Term. The Trustee shall distribute to or for the benefit of the Young Beneficiary so much of the net income and principal of the trust as the Trustee, in the Trustee's sole discretion, considers advisable for the Young Beneficiary's health, education, maintenance, and support. In exercising this discretion, the Trustee may, but need not, consider other resources reasonably available to the Young Beneficiary. The term "education" shall be construed broadly to include, without limitation, private elementary and secondary schooling, college, graduate, professional, vocational, and technical education, together with tuition, books, fees, room and board, and reasonable related travel expenses. Any net income not so distributed shall be added to principal. The Trustee may make distributions directly to the Young Beneficiary, to the guardian of the Young Beneficiary, to a custodian for the Young Beneficiary under the Texas Uniform Transfers to Minors Act (Chapter 141 of the Texas Property Code), or directly to any person or institution furnishing goods or services to the Young Beneficiary, and the receipt of any such payee shall fully discharge the Trustee.

7.4 Termination at Age Twenty-Five. When the Young Beneficiary attains the age of twenty-five (25) years, the Trustee shall distribute the remaining principal and any undistributed income of the trust outright to the Young Beneficiary, free of trust.

7.5 Death of Beneficiary Before Termination. If the Young Beneficiary dies before complete distribution of his or her trust, the remaining trust property shall be distributed to the Young Beneficiary's then-living descendants, *per stirpes*, or, if none, to my then-living descendants, *per stirpes*, or, if none, to the persons and in the shares provided in Section 5.4, determined as if I had died on the date of the Young Beneficiary's death. Any property so distributable to a person under the age of twenty-five (25) years shall be held in a separate trust for that person under this Article

VII, or, if a trust for that person already exists, added to and administered as part of that trust.

7.6 Maximum Trust Duration. Notwithstanding any other provision of this Will, each trust created under this Will shall terminate no later than twenty-one (21) years after the date of my death, and upon such termination the remaining trust property shall be distributed outright to the person then entitled to receive the income from the trust (or, if such person is then a minor, to such person's guardian or to a custodian for such person under the Texas Uniform Transfers to Minors Act). It is my intention that every trust created under this Will comply with the rule against perpetuities set forth in Article I, Section 26 of the Texas Constitution and Section 112.036 of the Texas Property Code, and this Will shall be construed accordingly.

7.7 Small Trust Termination. If at any time the value of a trust falls below Fifty Thousand Dollars ($50,000.00), or the Trustee determines that continued administration of the trust is uneconomical or no longer serves the purposes of the trust, the Trustee may, in the Trustee's discretion and as permitted by Section 112.059 of the Texas Property Code, terminate the trust and distribute the trust property to the Young Beneficiary, or, if the Young Beneficiary is then a minor, to the Young Beneficiary's guardian or to a custodian for the Young Beneficiary under the Texas Uniform Transfers to Minors Act.

7.8 Spendthrift Provision. Each trust created under this Will is a spendthrift trust within the meaning of Section 112.035 of the Texas Property Code. No beneficiary shall have the power to anticipate, assign, sell, transfer, pledge, encumber, or otherwise alienate, voluntarily or involuntarily, his or her interest in the income or principal of any trust, and no such interest shall be subject to the claims of any creditor of a beneficiary, to attachment, garnishment, execution, bankruptcy proceedings, or other legal or equitable process, or to the claims of a spouse or former spouse of a beneficiary, until such income or principal is actually distributed to the beneficiary.

7.9 Trustee Powers. In addition to all powers conferred upon trustees by the Texas Trust Code (Subtitle B, Title 9 of the Texas Property Code), as amended, and by other applicable law, and subject always to the Trustee's fiduciary duties, the Trustee shall have the following powers, each exercisable in the Trustee's sole discretion without the order or approval of any court:

(a) To retain any property received from my estate, including residential real property and closely held business interests, for so long as the Trustee deems advisable, without regard to any requirement of diversification;

(b) To sell, exchange, partition, grant options upon, or otherwise dispose of any trust property, real or personal, at public or private sale, for cash or on credit, and upon such terms as the Trustee deems advisable, and to execute and deliver deeds, bills of sale, and other instruments of conveyance;

(c) To invest and reinvest in any kind of property, real or personal, including stocks, bonds, mutual funds, exchange-traded funds, certificates of deposit, money market accounts, and real estate, in accordance with the Texas Uniform Prudent Investor Act;

(d) To manage, improve, repair, lease (including for terms extending beyond the duration of the trust), mortgage, and insure any real property, and to purchase or retain a residence for the use of a beneficiary;

(e) To borrow money for any trust purpose and to encumber trust property as security therefor, and to make loans to a beneficiary on such terms as the Trustee deems advisable;

(f) To employ and compensate attorneys, accountants, investment advisors, and other agents, and to rely on their advice;

(g) To compromise, settle, or abandon claims in favor of or against the trust;

(h) To make distributions in cash or in kind, or partly in each, and in non-pro rata shares, valuing property so distributed at its fair market value on the date of distribution;

(i) To access, manage, control, and dispose of digital assets and electronic communications to the fullest extent permitted by Chapter 2001 of the Texas Estates Code; and

(j) To merge or consolidate any trust with any other trust having substantially identical terms and beneficiaries, and to divide any trust into separate trusts, and to make any tax election available to the trust.

7.10 Bond; Compensation; Accountings; Liability. No Trustee shall be required to furnish bond or other security in any jurisdiction, and no Trustee shall be subject to the supervision of any court. Each Trustee shall be entitled to reasonable compensation for services rendered and to reimbursement of reasonable expenses. The Trustee shall furnish, at least annually, a written account of the receipts, disbursements, and assets of each trust to the beneficiary (or to the beneficiary's guardian if the beneficiary is a minor). No individual Trustee shall be liable for any act or omission made in good faith, except for a breach of trust committed in bad faith, intentionally, or with reckless indifference to the interest of a beneficiary, consistent with Section 114.007 of the Texas Property Code.

ARTICLE VIII
EXECUTOR

8.1 Appointment. I appoint my spouse, **THOMAS A. PARSONS**, as Independent Executor of this Will and of my estate. If my spouse fails to survive me, fails or declines to qualify, or, having qualified, dies, resigns, becomes incapacitated, or otherwise ceases to serve, I appoint **SARAH R. ROBERTS** as alternate Independent Executor. The terms "Executor" and "Independent Executor" as used in this Will refer to whichever of them is serving from time to time, and include any successor.

8.2 Bond Waived. No bond or other security shall be required of any Executor named in this Will, in any jurisdiction, whether serving as independent executor, dependent administrator, or ancillary fiduciary, and I request that the court waive any such bond as permitted by Section 401.005 of the Texas Estates Code.

8.3 Independent Administration. It is my intention that my estate be administered as an independent administration under Chapter 401 of the Texas Estates Code. I direct that no action shall be had in the county or probate court in relation to the settlement of my estate other than the probating and recording of this Will and the return of an inventory, appraisement, and list of claims of my estate (or an affidavit in lieu thereof, if permitted by law), as required by the Texas Estates Code.

8.4 Powers of Executor. My Executor shall have, without the necessity of any court order or approval, all of the powers granted to independent executors under the Texas Estates Code, as amended, together with all of the powers granted to the Trustee under Section 7.9 of this Will, which are incorporated herein by reference. Without limiting the foregoing, my Executor shall have full power and authority to sell, lease, mortgage, partition, or otherwise dispose of any real or personal property of my estate, publicly or privately, for cash or on credit, and upon such terms as my Executor deems best; to settle, compromise, or abandon claims; to make any election available under federal or state tax law (including any portability election under Section 2010(c)(5)(A) of the Internal Revenue Code); to access my digital assets and electronic communications under Chapter 2001 of the Texas Estates Code; and to distribute my estate in cash or in kind, or partly in each, and in non-pro rata shares.

8.5 Compensation and Ancillary Administration. My Executor shall be entitled to reasonable compensation for services rendered and to reimbursement of all reasonable expenses, provided that any individual Executor may waive compensation. If administration of any part of my estate is required in a jurisdiction in which my Executor is unable or unwilling to serve, my Executor may designate an ancillary fiduciary to serve without bond, and to the extent permitted by law such ancillary fiduciary shall have all of the powers granted to my Executor under this Will.

ARTICLE IX
GUARDIANS OF MINOR CHILDREN

9.1 Guardian of the Person and Estate. If my spouse does not survive me, or if for any reason my spouse is unable or unwilling to act as the guardian of any child of mine who is a minor at my death, then, pursuant to Section 1104.053 of the Texas Estates Code, I appoint **SARAH R. ROBERTS** as guardian of the person and of the estate of each such minor child. If Sarah R. Roberts fails or declines to qualify, or, having qualified, dies, resigns, becomes incapacitated, or otherwise ceases to serve, I appoint **HOWARD C. LONG** as alternate guardian of the person and of the estate of each such minor child.

9.2 Temporary Local Guardian. Because the guardian named above may not reside in the vicinity of my children at my death, I request that **MICHAEL T. FISHER** be permitted to take temporary physical custody of, and to provide care for, my minor children, and, if necessary, that he be appointed temporary guardian of the person of my minor children, to serve only until the permanent guardian named in Section 9.1 has qualified and is able to take possession and custody of my minor children, at which time his service shall end.

9.3 Bond; Intent. To the extent permitted by law, I request that no bond be required of any guardian appointed under this Article. Because I have provided in Article VII for property passing to my minor children to be held in trust, it is my hope that the need for a guardianship of the estate of any minor child of mine will be minimized. I request that any guardian named in this Will raise my children in a manner consistent with the values that my spouse and I have sought to instill in them, and that the guardian encourage my children to maintain close relationships with their extended family.

ARTICLE X
GENERAL PROVISIONS

10.1 Definitions. As used in this Will: (a) a person is "survived" by, or a beneficiary "survives," another only if the beneficiary satisfies the survival requirement of Section 6.1; (b) a child legally adopted before attaining eighteen (18) years of age, and the descendants of such child, shall be treated for all purposes as a natural-born child and descendants; (c) a distribution "*per stirpes*" shall be divided into equal shares at the level of the children of the designated ancestor, with one share for each then-living child and one share for each deceased child who leaves then-living descendants, the share of each deceased child being divided among his or her descendants in the same manner; and (d) the terms "Executor" and "Trustee" include any successor fiduciary, whether one or more, and regardless of gender.

10.2 No-Contest Provision. If any beneficiary under this Will, directly or indirectly, contests or seeks to invalidate this Will or any of its provisions in any court, then all benefits provided for such beneficiary under this Will are revoked, and such benefits shall pass as if such contesting beneficiary had predeceased me without descendants. This Section shall be enforced to the fullest extent permitted by Section 254.005 of the Texas Estates Code, and shall not apply to an action brought with just cause and in good faith, or to any action by my Executor or Trustee seeking construction of this Will or instructions from a court.

10.3 Effect of Divorce. If at the time of my death my marriage to Thomas A. Parsons has been dissolved by divorce or annulment, or declared void, then all provisions of this Will in favor of my former spouse, including any appointment of my former spouse as a fiduciary, shall be void, and this Will shall be read and construed as though my former spouse had predeceased me, as provided in Section 123.001 of the Texas Estates Code.

10.4 Funeral and Burial. I request that my body be disposed of in a manner my Executor, in consultation with my family, deems appropriate. My Executor shall pay the reasonable expenses of my funeral, burial or cremation, and a suitable marker from my estate.

10.5 No Contract. This Will is not made pursuant to any contract or agreement with my spouse or any other person, and the fact that my spouse may execute a will containing similar provisions shall not be construed as evidence of a contract not to revoke, as provided in Section 254.004 of the Texas Estates Code.

10.6 Governing Law. The validity, construction, and administration of this Will and of each trust created under it shall be governed by the laws of the State of Texas.

10.7 Severability; Headings; Gender and Number. If any provision of this Will is held invalid or unenforceable, the remaining provisions shall continue in full force and effect. Article and section headings are for convenience only and shall not affect the interpretation of this Will. Wherever the context requires, the masculine, feminine, and neuter genders each include the others, and the singular includes the plural and vice versa.

IN WITNESS WHEREOF, I, **GRACE J. PARSONS**, the Testator, sign my name to this instrument, consisting of **ten (10)** pages including the pages containing the signatures of the witnesses and the self-proving affidavit, on this **13th day of May, 2025**, at Austin, Travis County, Texas, and declare to the undersigned witnesses that I sign and execute this instrument as my Last Will and Testament, that I sign it willingly, that I execute it as my free and voluntary act for the purposes expressed in it, and that I am eighteen (18) years of age or older, of sound mind, and under no constraint or undue influence.

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GRACE J. PARSONS, Testator

ATTESTATION OF WITNESSES

The foregoing instrument, consisting of **ten (10)** pages including this page and the self-proving affidavit, was on the date last written above signed and declared by **GRACE J. PARSONS**, the Testator, to be her Last Will and Testament, in our presence, and we, at her request, in her presence, and in the presence of each other, all being present at the same time, have signed our names below as attesting witnesses. Each of us declares that he or she is at least fourteen (14) years of age, that he or she is not a beneficiary under this Will, and that to the best of his or her knowledge the Testator is eighteen (18) years of age or older, of sound mind, and under no constraint or undue influence.

_____ Address: _____

JOSE P. HARRIS, Witness _____

_____

_____ Address: _____

GERALDINE R. WATSON, Witness _____

_____

SELF-PROVING AFFIDAVIT

(Texas Estates Code § 251.104)

THE STATE OF TEXAS §
§
COUNTY OF TRAVIS §

Before me, the undersigned authority, on this day personally appeared **GRACE J. PARSONS**, **JOSE P. HARRIS**, and **GERALDINE R. WATSON**, known to me to be the testator and the witnesses, respectively, whose names are subscribed to the annexed or foregoing instrument in their respective capacities, and, all of said persons being by me duly sworn, the said **GRACE J. PARSONS**, testator, declared to me and to the said witnesses in my presence that said instrument is her last will and testament, and that she had willingly made and executed it as her free act and deed; and the said witnesses, each on his or her oath stated to me, in the presence and hearing of the said testator, that the said testator had declared to them that said instrument is her last will and testament, and that she executed same as such and wanted each of them to sign it as a witness; and upon their oaths each witness stated further that they did sign the same as witnesses in the presence of the said testator and at her request; that she was at that time eighteen years of age or over (or being under such age, was or had been lawfully married, or was then a member of the armed forces of the United States or of an auxiliary of the armed forces of the United States or the United States Maritime Service) and was of sound mind; and that each of said witnesses was then at least fourteen years of age.

_____
GRACE J. PARSONS, Testator

_____
JOSE P. HARRIS, Witness

_____
GERALDINE R. WATSON, Witness

Subscribed and sworn to before me by the said **GRACE J. PARSONS**, testator, and by the said **JOSE P. HARRIS** and **GERALDINE R. WATSON**, witnesses, this **13th day of May, 2025**.

(SEAL)

_____
Notary Public in and for the State of Texas

Printed Name: _____

My Commission Expires: _____